



Planning Inspectorate

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Chris Tyler
Principal Planning Officer
Uttlesford District Council
ctyler@uttlesford.gov.uk
cc planning@uttlesford.gov.uk

Your Ref:

Our Ref:

APP/C1570/V/26/3378829
& APP/C1570/V/26/3378830

Date:

15 July 2026

Dear Chris

Town and Country Planning Act 1990 - Section 77 and Town and Country Planning (Inquiries Procedure) (England) Rules 2000
Applications by: City & Country Stansted Ltd
Site Address: South West of Mountfitchet High School, Forest, Hall Road, Stansted, Essex & land North of Birchanger Lane, Birchanger

I refer to the above called-in planning application and the Planning Casework Unit's letter of 1 July 2026. I am the case officer.

The Inspector and Secretary of State require copies of all documentation that was considered at application stage including representations from interested parties and consultees. Please can the Council and applicant produce an agreed schedule and submit copies of all documentation to me, electronically, within 2 weeks from the date of this letter.

The Independent Review of Planning Appeal Inquiries has been published and the Planning Inspectorate is now applying some of the Review's recommendations to called-in planning applications.

<https://www.gov.uk/government/news/performance-update-moving-ahead-in-2020>

The call-in date was 1 July 2026 however certain aspects of the timetable for the application(s) begins from the date of this letter.

The Inspector and Inquiry date

The Inspector appointed by the Secretary of State is M Middleton BA(Econ), DipTP, MRTPI and the inquiry will open at **10.00am** on **3 November 2026**. We have currently scheduled **8 sitting days**. Please advise as soon as possible if you consider more time will be needed.

Please can the LPA secure a suitable venue as soon as possible and provide details.

All parties are reminded that witnesses to the Inquiry should be available for its

duration.

The Inspector will hold a case management conference with the main parties on Teams (Inspectorate hosted), on a date to be confirmed. Details will follow including an agenda and details of how to call in. Each party should have a single spokesperson nominated to speak; the intended advocates should participate if possible. Please can you provide the name and email address of your spokesperson 7 days before the case conference, along with the names/email addresses of any other participants.

In advance of the case management conference, parties are requested to focus only on the matters that are in dispute and give detailed consideration as to exactly what topics could most efficiently be dealt with as a round table discussion at the inquiry (or possibly just by written submissions) in order to ensure that the inquiry is conducted in an efficient and effective manner, optimising inquiry time. This will be an item on the agenda for the conference. In light of the outcome of that discussion, the Inspector will direct how the evidence will be dealt with at the inquiry.

Sending documents to us and looking at the application

A timetable for some elements of the case is set out below. No reminders will be sent.

You can use the Internet to submit documents, to see information and to check the progress of cases through GOV.UK. The address of the search page is <https://acp.planninginspectorate.gov.uk/>

If emailing documents, please use the email address above. If posting documents, please send a single copy. Whichever method you use, please make sure that all documents/emails are clearly marked with the full reference number.

Guidance on communicating with us electronically can be found at <https://www.gov.uk/government/publications/planning-appeals-procedural-guide>

Sending documents electronically, if possible, will enable us to deal with them more quickly. Should we require hard copies of any documents we will advise.

Keeping to the timetable

You must keep to the timetable set out below and make sure that you send us the relevant documents within these deadlines. This will mean that we can deal with the application promptly and fairly. Not meeting the prescribed timetables may be a reason for the Inspector to initiate an award of costs (see section on costs below).

Unless agreed otherwise by the Inspector at the case management conference the following documents must be sent within this timetable.

Within 2 weeks of the date of this letter, using the model notification letter in Annex 1 below, you should notify any person who was notified or consulted about the application in accordance with the Act or a development order and any other interested persons who made representations to you about the application that I am now dealing with the case. You should tell them that:

- i) any comments they made at application stage will be submitted to the Planning Inspectorate and if they want to make any additional comments, they should submit them to me within 6 weeks of the date of this letter i.e. by 26 August 2026.
- ii) when and where the application documents will be available for inspection;

iii) that the Planning Inspectorate will not acknowledge representations. We will however ensure that letters received by the deadline are passed on to the Inspector dealing with the application;

iv) that the decision will be published on the Planning Portal.

Please send a copy of the notification letter to me.

By 26 August 2026

Please send me a copy of your statement giving **full** details of the case you will put forward at the inquiry including any documents, maps or plans you intend to refer to or use in evidence. Please also include a list of any conditions or limitations you would agree to, if the application were to be allowed. I will send a copy of your statement to the applicant and you must send a copy of your statement to any statutory parties. I will also send you and the applicant a copy of any comments received from other interested persons or organisations.

You must allow anyone who wants to inspect the application documents a reasonable opportunity to do so. Your statement must say when and where this can be done.

You must also submit a copy of the completed agreed statement of common ground, listing all matters that are not only agreed but also confirming areas where there is disagreement. Further guidance on producing statements of common ground (and a model form) is available from

<https://www.gov.uk/government/publications/statement-of-common-ground>

By 6 October 2026

You and the applicant must send me a copy of your proof(s) of evidence (and a written summary if the proof is over 1500 words in length). You should also send a copy to any statutory party. A 'proof of evidence' is a written statement that you, the applicant or a witness wishes the Inspector to take into account at the inquiry. Any summary should reflect the contents of the proof and should not include new evidence.

By 13 October 2026

Please send a copy of the LPA inquiry notification letter.

Planning obligations - section 106 agreements

A planning obligation, often referred to as a 'section 106 agreement', is either a legal agreement made between the LPA and a person 'interested in the land' or a legally binding undertaking signed unilaterally by a person 'interested in the land'. If you intend to submit a planning obligation, you must read the guidance provided on GOV.UK - www.gov.uk/government/publications/planning-appeals-procedural-guide.

A draft, or heads of terms, should be submitted before the case management conference. A final draft, agreed by all parties to it, must be submitted to me no later than 10 working days before the inquiry opens.

Statutory parties

'Statutory parties' are owners or tenants of the application site who made comments within the time limit on the application.

Withdrawing the application

If you hear that the application is to be withdrawn, please telephone me immediately. If I receive written confirmation of this from the applicant I will write to you.

Costs

The applicant has been directed to GOV.UK for further information regarding costs – <http://planningguidance.communities.gov.uk/blog/guidance/appeals/>. You should also be aware that costs may be awarded to either party.

Additionally, a Planning Inspector or the Secretary of State may on their own initiative make an award of costs, in full or in part, if they judge that a party has behaved unreasonably resulting in unnecessary expense.

Where a new local policy has been adopted at any point following the call-in of this application but before the decision is issued you must inform PINS and outline its effect on this application.

The Inspector's report and the Secretary of State's decision

The Inspector's report is expected to be submitted to the Secretary of State on or before 27 January 2027. The date by when the application will be decided will be published at the time the report is submitted to the Secretary of State.

Further information

Further information about how we are now handling called-in planning applications can be found at the following link.

<https://www.gov.uk/government/organisations/planning-inspectorate>

If you have any questions, please contact me.

Yours sincerely,

Laura Chadwick

Case Officer
Planning & Environmental Applications Service

Annex 1

TOWN AND COUNTRY PLANNING ACT 1990 APPLICATION UNDER SECTION 77

Site Address: South West of Mountfitchet High School, Forest, Hall Road, Stansted, Essex

Description of development: up to 300 dwellings, up to 2000sqm of Class E uses (offices, shop, cafe) early years nursery, private gym), up to 60 bed care home, safeguarded village hall land, safeguarded educational land, access, landscaping, and associated infrastructure AND Up to 180 dwellings and safeguarded land for primary school use with access, landscaping and associated infrastructure. All matters reserved except access

Application reference: UTT/25/3012/O

Site Address: Land North of Birchanger Lane, Birchanger

Description of development: Up to 180 dwellings and safeguarded land for primary school use with access, landscaping and associated infrastructure. All matters reserved except access

Application reference: UTT/25/3011/O

Applicant's name: City & Country Stansted Ltd

Called-in Application references: APP/C1570/V/26/3378829 & APP/C1570/V/26/3378830

Application start date: 15 July 2026

I refer to the above details. These applications, made to Uttlesford District Council, have been called-in by the Secretary of State.

The applications will be heard together and will be determined on the basis of an inquiry. The procedure to be followed is set out in the Town and Country Planning Appeals (Inquiry Procedure) (England) Rules 2000, as amended.

For any group or organisation who wish to take an active part in the Inquiry, the opportunity is available to apply for what is known as Rule 6 status. Although unusual, there is also scope for interested individuals to take part on the same basis. Rule 6 status means that you would be able to present your evidence on a formal basis and cross examine the evidence of others. You can find guidance at the following link:

<https://www.gov.uk/government/publications/apply-for-rule-6-status-on-a-planning-appeal-or-called-in-application>

Arrangements for the Inquiry are currently being finalised by the Planning Inspectorate. These will include a pre-Inquiry conference call with the lead parties to deal with procedural and administrative matters, including how the evidence will be heard. As a Rule 6 party, it is anticipated that you would also be a part of that process. If, having read the above guidance, you wish to apply for Rule 6 status and/or have any related questions, you should contact the Planning Inspectorate immediately. If you are interested but are unable to access the guidance electronically, again, you should contact the Planning Inspectorate who will try and assist.

If, having read the above guidance, you wish to apply for Rule 6 status it is essential that you contact the Planning Inspectorate immediately.

We have forwarded all the representations made to us on the application to the Planning Inspectorate. These will be considered by the Inspector and Secretary of State when determining the application.

If you wish to make comments, or modify/withdraw your previous representation, you can do so online at <https://acp.planninginspectorate.gov.uk>

If you do not have access to the internet, you can send your comments to:

Laura Chadwick
Planning & Environmental Applications Service
Planning Inspectorate
c/o QUADIENT
69 Buckingham Avenue
Slough
SL1 4PN

All representations must be received by 26 August 2026. The Planning Inspectorate does not acknowledge representations. All representations must quote the application reference.

Please note that any representations you submit to the Planning Inspectorate will be copied to the applicant and this local planning authority and will be considered by the Inspector and Secretary of State when determining the application.

The application documents are available for inspection at [**insert venue**] between [**insert times between which documents can be inspected**].

Further guidance about Called-in planning applications can be found here <https://www.gov.uk/guidance/called-in-planning-applications>

When made, the decision will be published online at <https://acp.planninginspectorate.gov.uk>